

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Mark A. McCannon
1050 Mission Road, South San Francisco, CA 94080
Department 2, Courtroom K
Thursday 9/10/2026 at 2:00 pm

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept2@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling **OR** call (650) 261-5102 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/>

Meeting ID: 160 135 4419

Password: 845111

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case

Title / Nature of Case

2:00 PM

LINE: 1

23-CIV-01407

ROSARIO CUSTODIO, ET AL VS. BRIUS, LLC, ET AL

ROSARIO CUSTODIO
BRIUS, LLC

JAY P RENNEISEN
LINDSEY ROMANO

PLAINTIFFS' MOTION FOR DISCOVERY REFEREE

TENTATIVE RULING:

For the reasons stated below, Plaintiffs' Motion for Appointment of a Discovery Referee is **GRANTED IN PART**.

Code of Civil Procedure section 639, subdivision (a)(5), permits the Court to appoint a discovery referee where the particular circumstances establish that a reference is necessary. A nonconsensual discovery reference requires exceptional circumstances specific to the case. (Code Civ. Proc., § 639, subd. (d)(2); Cal. Rules of Court, rule 3.920(c); *Taggares v. Superior Court* (1998) 62 Cal.App.4th 94, 105; *Hood v. Superior Court* (1999) 72 Cal.App.4th 446, 449.)

The Court finds exceptional circumstances warranting a limited discovery reference. The discovery at issue was first noticed in December 2022 and includes numerous percipient, management, and PMQ depositions. The parties have engaged in extensive meet-and-confer efforts; deposition dates were offered and later withdrawn; Defendants previously moved to substantially limit the noticed depositions; that motion was denied without prejudice; and Defendants thereafter filed a renewed motion for protective order that is presently set for hearing on February 1, 2027. Defendants have also taken the position that deponents subject to that motion will not be produced while it remains pending. Plaintiffs have identified additional disputes concerning PMQ and individual depositions, document production, written discovery, verifications, and inspection. The case is also approaching the applicable five-year trial period.

These circumstances distinguish this matter from a routine or isolated discovery dispute. The present disputes involve multiple issues and are part of an ongoing continuum of discovery disputes requiring substantial judicial management. (*Taggares*, supra, 62 Cal.App.4th at p. 105; see *DeBlase v. Superior Court* (1996) 41 Cal.App.4th 1279, 1286-1287.)

The Court, however, declines at this time to refer every discovery dispute that may arise in the action. The reference shall be limited to the pending renewed motion for protective order and disputes arising from the outstanding deposition, PMQ, document-production, written-discovery, verification, and inspection issues identified in Plaintiffs' moving and reply papers. Any unrelated future discovery dispute shall remain with the Court unless otherwise ordered.

The specific referee and terms of compensation will be determined by further written order. The parties shall meet and confer regarding selection of a referee. If they cannot agree, each side may submit no more than three nominees pursuant to Code of Civil Procedure section 640, subdivision (b), together with the proposed hourly rate and availability, no later than **September 17, 2026**. Any party claiming economic inability to pay a pro rata share of the referee's fees shall submit supporting evidence by the same date. Plaintiffs shall thereafter lodge a proposed order complying with Code of Civil Procedure section 639, subdivision (d), and California Rules of Court, rules 3.922 through 3.924.

Pending entry of the appointment order, the parties remain subject to all existing discovery obligations and orders. The filing or pendency of a motion for protective order does not itself constitute a stay of discovery.

The referee shall report findings and recommendations to the Court. The Court retains ultimate authority over the discovery disputes and any recommendations of the referee.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiffs shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM

LINE: 2

23-CIV-03335

WILLIAM ROGERS, ET AL VS. TRANSITAMERICA SERVICES, INC., ET AL

WILLIAM ROGERS
TRANSITAMERICA SERVICES, INC.

ANDREW P MCDEVITT
STEPHANIE L QUINN

DEFENDANT PENINSULA CORRIDOR JOINT POWERS BORD, TRANSSIT AMERICA SERVICES, INC., and HERZOG TRANSIT SERVICES, INC.'S MOTION TO COMPEL COMPLIANCE WITH SUBPOENA BY THIRD PARTY BALFOUR BEATTY INFRASTRUCTURE INC.

TENTATIVE RULING:

For the reasons stated below, Defendants Peninsula Corridor Joint Powers Board, Transitamerica Services, Inc., and Herzog Transit Services, Inc.'s Motion to Compel Compliance with Subpoena by Balfour Beatty Infrastructure, Inc. is **GRANTED IN PART** and **DENIED IN PART**. Defendants' request for monetary sanctions is **GRANTED IN PART** in the amount of \$1,000.

BACKGROUND

This is a personal injury and negligence action arising from injuries sustained by Plaintiff William Rogers, an employee of MRS, while working on Caltrain property. Plaintiff fell through timber planking on the Oregon Expressway Bridge onto the Oregon Expressway below on August 25, 2022.

MOTION TO COMPEL

On February 19, 2025, Defendants served Balfour Beatty Infrastructure, Inc. ("BBI"), then a nonparty, with a deposition subpoena seeking 17 categories of documents. BBI served objections in March 2025. After several months of meet-and-confer efforts and extensions during which BBI represented that it was searching for and would produce responsive documents, Defendants filed the present Motion on August 7, 2025, when BBI had not produced responsive documents. In October 2025, Defendants filed a Cross-Complaint naming BBI as a cross-defendant.

In August 2026, after becoming a party, BBI served Amended Responses to the subpoena and represented that it had produced all responsive, nonprivileged documents within its possession, custody, or control or, as to certain requests, that responsive documents could not be located or no longer existed. BBI contends that its subsequent production renders the Motion moot and that Defendants must now proceed exclusively through party discovery.

The Court is not persuaded that BBI's subsequent joinder as a party divested the Court of authority to rule on a motion that was properly filed to enforce a subpoena served while BBI was a nonparty. Code of Civil Procedure section 1987.1 expressly authorizes the Court, on a motion concerning a subpoena, to direct

compliance upon such terms and conditions as the Court determines appropriate. (Code Civ. Proc., § 1987.1, subd. (a).) Moreover, subsequent production of discovery after a motion to compel has been filed does not necessarily require the Court to treat the motion as moot. (*See Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408–411; Cal. Rules of Court, rule 3.1348(a).)

The Court nevertheless declines Defendants’ request, first made in Reply, for a blanket determination that all objections newly asserted in BBI’s Amended Responses are waived under Code of Civil Procedure section 2031.300. Section 2031.300 governs a party’s failure to timely respond to a demand for inspection, copying, testing, or sampling; it does not govern the subpoena served on BBI when BBI was a nonparty. (Code Civ. Proc., § 2031.300, subd. (a).)

There remains, however, a legitimate issue concerning the clarity of BBI’s present compliance. BBI’s Amended Responses assert new objections, including objections based on trade secrets, confidential research, and proprietary commercial information, while simultaneously representing that responsive documents have been produced or do not exist. Defendants are entitled to know whether BBI is withholding any otherwise responsive documents based upon those objections. Additionally, BBI’s Amended Response to Request No. 2 appears to repeat Request No. 1 rather than respond to Request No. 2 as actually propounded.

Accordingly, within 10 days after service of written notice of the Court’s order, BBI shall serve a supplemental written response that:

1. correctly identifies and responds to Request No. 2;
2. states unequivocally whether any responsive documents to Request Nos. 1–17 are being withheld based upon any objection asserted in BBI’s Amended Responses; and
3. confirms that, except for any documents expressly identified as being withheld, BBI has produced all responsive, nonprivileged documents within its possession, custody, or control after a diligent search and reasonable inquiry.

To the extent Defendants seek an order compelling production of documents that BBI represents have already been produced or do not exist, the Motion is **DENIED AS MOOT**. The Court cannot compel production of documents that are not within BBI’s possession, custody, or control.

SANCTIONS

Defendants request monetary sanctions of \$1,540 against BBI. BBI contends that the sanctions request did not provide adequate notice.

The Court disagrees. Code of Civil Procedure section 2023.040 requires the notice of motion to identify the person or party against whom sanctions are sought, specify the type of sanction requested, and be supported by a memorandum and declaration establishing the amount sought. Here, Defendants’ Notice expressly sought monetary sanctions of \$1,540 against BBI, and the request was supported by the memorandum and counsel’s declaration identifying the claimed fees and costs. The sanctions request therefore provided adequate notice.

The fact that BBI produced documents after the Motion was filed does not preclude an award of sanctions. (Cal. Rules of Court, rule 3.1348(a).) Section 1987.2 also authorizes an award of reasonable expenses incurred

in making or opposing a motion under section 1987.1 where the motion was made or opposed without substantial justification. (Code Civ. Proc., § 1987.2, subd. (a).)

Defendants engaged in meet-and-confer efforts with BBI for several months before filing this Motion. During that period, BBI repeatedly represented that it was searching for and would produce responsive documents, yet no responsive production had been made when Defendants filed the Motion in August 2025. BBI did not serve the Amended Responses at issue until August 2026. Under these circumstances, an award of reasonable monetary sanctions is warranted notwithstanding BBI's subsequent production.

Considering the relief obtained, the subsequent production, and the work reasonably necessary to bring the Motion, the Court finds \$1,000 to be a reasonable sanction.

Accordingly, Defendants' request for monetary sanctions is **GRANTED IN PART**. BBI shall pay \$1,000 in monetary sanctions to counsel for Defendants within 30 days after service of written notice of the Court's order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM

LINE: 3

23-CIV-03335

WILLIAM ROGERS, ET AL VS. TRANSITAMERICA SERVICES, INC., ET AL

WILLIAM ROGERS
TRANSITAMERICA SERVICES, INC.

ANDREW P MCDEVITT
STEPHANIE L QUINN

DEFENDANT PENINSULA CORRIDOR JOINT POWERS BORD, TRANSIT AMERICA SERVICES, INC., and HERZOG TRANSIT SERVICES, INC.’S MOTION TO COMPEL COMPLIANCE WITH SUBPOENA BY THIRD PARTY MODERN RAILWAY SYSTEMS

TENTATIVE RULING:

For the reasons stated below, Defendants Peninsula Corridor Joint Powers Board, TransitAmerica Services, Inc., and Herzog Transit Services, Inc. (collectively, “Defendants”) motions to compel third-party Modern Railway Systems (“MRS”) to comply with a subpoena for business records is **GRANTED IN PART**, as modified below. Defendants’ request for sanctions is **DENIED**.

BACKGROUND

This is a personal injury and negligence action arising from injuries sustained by Plaintiff William Rogers, an employee of MRS, while working on Caltrain property. Plaintiff fell through timber planking on the Oregon Expressway Bridge onto the Oregon Expressway below on August 25, 2022.

Defendants served MRS with the subject subpoena on April 4, 2025. (Walker Decl., ¶ 2, Ex. 1.) MRS served objections on April 25, 2025. (Id., ¶ 3, Ex. 2.) The parties began meeting and conferring on May 16, 2025. (Id., ¶ 4, Ex. 3.) Although the parties resolved several issues, disputes remain concerning Request Nos. 5 and 17. Defendants subsequently agreed to limit the requests to work performed during the five months preceding Plaintiff’s accident. (Walker Decl., ¶ 14, Ex. 11.)

LEGAL STANDARD

Discovery orders are reviewed for abuse of discretion because management of discovery lies within the sound discretion of the trial court. (*Manuel v. Superior Court* (2022) 82 Cal.App.5th 719, 727.)

A party may obtain discovery of nonprivileged matters relevant to the subject matter of the action if the information is admissible or reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010.) Discovery from a nonparty may be obtained through a deposition subpoena. (Id., §§ 2020.010, 2020.410.)

A party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought and may not rely on generalities. (*Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, 1039; *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 223-224.) The

Court may modify a subpoena or direct compliance upon terms necessary to protect the nonparty from unreasonable or oppressive demands. (Code Civ. Proc., § 1987.1.)

ANALYSIS

Defendants seek documents concerning work performed on the AFTAC/utility/junction box located near the bridge and documents evidencing Bass Electric's work in the vicinity of the bridge. Defendants contend the records are relevant because Plaintiff's co-workers testified that Plaintiff was walking to the AFTAC box when he fell, and the requested records may establish what work was being performed in the area at or near the time of the accident.

The Court finds Defendants have established good cause for **limited** discovery. Records identifying or describing work actually performed or scheduled on the identified equipment at or near the time of the accident may bear on whether Plaintiff was proceeding to that equipment for work when he fell. Similarly, records identifying Bass Electric work occurring in the vicinity of the bridge during that same period may bear on the work being performed and conditions existing at the location.

Defendants have not, however, established good cause for five months of "all documents" concerning such work. The requests, even as informally narrowed, remain substantially broader than the evidentiary justification offered. MRS also presents evidence that the Project contains more than one terabyte of data maintained across numerous custodians and that a broad production would require substantial manual review. The appropriate remedy is therefore to narrow the subpoena rather than compel production as presently framed.

Accordingly, the motion is **GRANTED IN PART** as follows:

Request No. 5: MRS shall produce documents sufficient to identify or describe work performed or scheduled to be performed on the AFTAC box, utility box, or junction box identified in Request No. 5 **on August 25, 2022, and during the seven days preceding August 25, 2022**, including responsive photographs, reports, drawings, work orders, schedules, or similar records.

Request No. 17: MRS shall produce documents sufficient to identify or describe work performed or scheduled to be performed by Bass Electric in the vicinity of the Oregon Expressway Bridge **on August 25, 2022, and during the seven days preceding August 25, 2022**, including responsive photographs, reports, work orders, or schedules.

Nothing in this order requires MRS to produce documents falling outside the subject matter of Request Nos. 5 and 17.

Defendants' request for monetary sanctions is **DENIED**. MRS was substantially justified in opposing the motion because the requests, even after the parties' informal five-month limitation, were materially broader than the discovery for which Defendants established good cause. (Code Civ. Proc., § 1987.2, subd. (a); see also id., § 2025.480, subd. (j).)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant

to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM

LINE: 4

23-CIV-03335

WILLIAM ROGERS, ET AL VS. TRANSITAMERICA SERVICES, INC., ET AL

WILLIAM ROGERS
TRANSITAMERICA SERVICES, INC.

ANDREW P MCDEVITT
STEPHANIE L QUINN

DEFENDANT PENINSULA CORRIDOR JOINT POWERS BORD, TRANSSIT AMERICA SERVICES, INC., and HERZOG TRANSIT SERVICES, INC.’S MOTION TO COMPEL PLAINTIFFS TO PRODUCE UNREDACTED CELL PHONE RECORDS

TENTATIVE RULING:

For the reasons stated below, Defendants Transitamerica Services, Inc., Herzog Transit Services, Inc., and Peninsula Corridor Joint Powers Board’s Motion to Compel Plaintiffs William Rogers and Sarah Rogers to Produce Unredacted Cell Phone Records is **DENIED**. Plaintiffs’ request for monetary sanctions is **GRANTED** in the amount of \$10,060.

BACKGROUND

This is a personal injury and negligence action arising from injuries sustained by Plaintiff William Rogers, an employee of MRS, while working on Caltrain property. Plaintiff fell through timber planking on the Oregon Expressway Bridge onto the Oregon Expressway below on August 25, 2022.

MOTION TO COMPEL

Defendants subpoenaed Plaintiffs’ telephone carrier for records reflecting call and text activity from August 24 through August 26, 2022. The carrier declined to produce the records without Plaintiffs’ authorization. Code of Civil Procedure section 1985.3, subdivision (f), provides that a subpoena for personal records maintained by a public-utility telephone corporation is not valid or effective unless it includes the consumer’s signed consent to release the records. Public Utilities Code section 2891 likewise restricts a telephone corporation from disclosing a residential subscriber’s personal calling patterns without written consent.

Following meet-and-confer efforts, Plaintiffs and Defendants agreed that Plaintiffs would authorize production of records for the period beginning at 7:00 p.m. on August 24, 2022 and ending at 3:00 a.m. on August 25, 2022. The carrier thereafter produced records extending beyond that agreed period. Plaintiffs redacted information outside the agreed window and produced the remaining records to Defendants. Because the carrier records were reported in Coordinated Universal Time (“UTC”), Plaintiffs’ counsel converted the entries to Pacific Daylight Time (“PDT”) in determining which records fell within the agreed production period.

Defendants now seek an order compelling Plaintiffs to produce the entirety of the carrier’s unredacted records from August 24 through August 26, 2022. The Motion identifies no discovery request directed to Plaintiffs requiring production of those records and no statutory procedure under which the Court may

compel the broader production sought. To the extent the Motion is intended as one to compel further production in response to a demand for inspection, Defendants have not identified such a demand and have not provided the separate statement required by California Rules of Court, rule 3.1345. The Motion is therefore procedurally deficient.

The Motion also fails on its merits. Defendants do not contend that calls or messages occurring before 7:00 p.m. on August 24 or after 3:00 a.m. on August 25 are themselves relevant to the litigation. Rather, Defendants seek the unredacted records to determine whether Plaintiffs' counsel correctly converted the carrier's UTC entries and properly identified the records falling within the agreed production window. Defendants identify no particular error in that conversion or other evidence establishing that relevant carrier records within the agreed window were improperly redacted. Mere speculation that the conversion may have been performed incorrectly does not warrant disclosure of records outside the agreed scope, particularly where those records contain information concerning Plaintiffs' personal calling patterns.

To the extent Defendants rely upon new evidentiary material submitted with their Reply to establish that certain calls or messages are absent from the production, the Court does not rely upon evidence presented for the first time on reply. In any event, that evidence does not establish that Plaintiffs incorrectly converted the carrier records or improperly withheld a carrier record falling within the agreed period.

Accordingly, Defendants' Motion to Compel is **DENIED**.

SANCTIONS

Plaintiffs request \$10,060 in monetary sanctions against Defendants.

Misuses of the discovery process include "[m]aking or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery." (Code Civ. Proc., § 2023.010, subd. (h).) The Court may impose monetary sanctions consisting of the reasonable expenses, including attorney's fees, incurred as a result of discovery misuse. (Id., § 2023.030, subd. (a); *City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal.5th 46, 73–74.)

The Court finds that Defendants were not substantially justified in bringing the present Motion. Defendants seek production beyond the scope previously agreed upon by the parties without identifying an authorized discovery procedure supporting the relief requested, without providing a separate statement, and without identifying a specific error in Plaintiffs' production. Further, the statutory scheme expressly recognizes the protected nature of telephone calling-pattern information. On this record, Defendants' unsupported concern that Plaintiffs' counsel may have incorrectly converted UTC to PDT does not provide substantial justification for seeking wholesale production of the unredacted records.

Plaintiffs submit evidence that they reasonably incurred \$10,060 in attorney's fees in opposing the Motion, excluding anticipated future work. (Minoiefar Decl., ¶ 10.) Monetary sanctions must be limited to reasonable expenses actually incurred as a result of the discovery misconduct. (*Tucker v. Pacific Bell Mobile Services* (2010) 186 Cal.App.4th 1548, 1562–1564.)

Accordingly, Plaintiffs' request for monetary sanctions is **GRANTED**. Monetary sanctions in the amount of \$10,060 are imposed jointly and severally against Defendants Transitamerica Services, Inc., Herzog Transit

Services, Inc., and Peninsula Corridor Joint Powers Board. The sanctions shall be paid within 30 days after service of written notice of the Court's order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiffs shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM

LINE: 5

24-CIV-01921

TRUEBECK CONSTRUCTION, INC., ET AL VS. SETH TAYLOR, ET AL

TRUEBECK CONSTRUCTION, INC.
SETH TAYLOR

A ROBERT ROSIN

PLAINTIFF, CROSS COMPLAINANT, and CROSS DEFENDANT, TRUEBECK CONSTRUCTION, INC.'S MOTION OF TRUEBECK CONSTRUCTION, INC. FORAN ORDER BIFURCATING TRIAL

TENTATIVE RULING:

Plaintiff and Cross-Defendant Truebeck Construction, Inc.'s ("Truebeck") Motion for an Order Bifurcating Trial is **DENIED WITHOUT PREJUDICE**.

Truebeck's Requests for Judicial Notice are **GRANTED** as to the existence and contents of the identified court records, but not as to the truth of disputed factual matters contained therein.

BACKGROUND

These consolidated actions arise from disputes concerning SmartLabs' lease and an approximately \$80 million tenant-improvement construction project at 750 Gateway Boulevard in South San Francisco. Truebeck served as general contractor, SmartLabs was the tenant, and Defendant and Cross-Complainant BMR-Gateway of Pacific II LLC ("BMR") owns the property. Truebeck and numerous subcontractors and suppliers assert mechanics liens and related claims arising from approximately \$24.36 million in allegedly unpaid construction work. The litigation also includes claims concerning SmartLabs' lease obligations, financing, alleged misrepresentations, indemnity, alter ego liability, and the conduct of various SmartLabs-related entities, officers, directors, and investors.

Truebeck moves pursuant to Code of Civil Procedure sections 598 and 1048, subdivision (b), to divide trial principally into two phases. Phase 1 would encompass construction, performance, payment, mechanics-lien, prompt-payment, common-count, quantum-meruit and certain related indemnity claims. Phase 2 would encompass various fraud, misrepresentation, promissory-estoppel, alter-ego, interference, lease and indemnity claims and related equitable issues. Truebeck proposes a possible additional phase if punitive damages are reached.

BMR opposes the motion, and Farnam Street Financial has joined the opposition. BMR principally argues that the proposed phases contain overlapping evidence and witnesses and that bifurcation is premature because discovery remains incomplete, multiple motions for summary adjudication remain unresolved, and the operative pleadings and parties have recently changed.

On August 27, 2026, the Court granted Truebeck leave to file a Second Amended Complaint and granted BMR leave to file a First Amended Cross-Complaint. Those amended pleadings add claims and parties to this already complex consolidated litigation.

LEGAL STANDARD

Code of Civil Procedure section 598 authorizes the Court to order separate trials when doing so would promote the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation.

Code of Civil Procedure section 1048, subdivision (b), similarly permits the Court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, to order a separate trial of any cause of action or separate issue.

The decision whether and how to bifurcate rests within the trial court's broad discretion. (*Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 888; *Grappo v. Coventry Financial Corp.* (1991) 235 Cal.App.3d 496, 504.) The relevant inquiry is practical: whether separate trials will result in greater convenience and efficiency, avoid prejudice, and reduce rather than duplicate the presentation of evidence. (*Orange County Water Dist. v. Alcoa Global Fasteners, Inc.* (2017) 12 Cal.App.5th 252, 359.)

DISCUSSION

Truebeck makes a substantial showing that the litigation ultimately may benefit from some form of phased trial. The construction and payment claims present a discernible body of issues concerning the construction contracts, work performed, payment applications, change orders, retention, stop-payment notices, lien documentation, and amounts due. The fraud, financing, corporate-governance, alter-ego and investor-liability claims implicate additional issues and evidence that may not be necessary to determine the underlying construction debt and lien claims. A phased trial therefore may ultimately promote judicial economy and permit numerous Trade Partner witnesses to complete their involvement without participating in litigation concerning unrelated corporate and tort issues.

The Court nevertheless concludes that entry of Truebeck's proposed bifurcation order **at this time** would be premature.

First, the pleadings and parties have only recently changed. On August 27, 2026, the Court granted both Truebeck and BMR leave to amend their operative pleadings. The amendments add substantive claims and additional parties. The Court is not persuaded that it should presently prescribe the trial structure for newly added parties and claims before the pleadings are settled and the parties have had an adequate opportunity to address the claims against them.

Second, significant discovery remains outstanding. The record reflects that full merits discovery began only in approximately May 2026 following earlier discovery limitations and stays. At the time the motion was briefed, only limited PMQ depositions had been completed, no BMR personnel had yet been deposed, additional PMQ discovery remained outstanding, subcontractor discovery remained to be conducted, and expert discovery had not commenced.

The Court agrees with Truebeck that Code of Civil Procedure section 598 does not require completion of discovery before a court may order bifurcation. The issue, however, is not whether the Court has authority to act now, but whether the present record establishes that the particular division proposed by Truebeck will promote convenience and economy. It does not yet do so.

BMR has identified specific witnesses and categories of evidence that may be relevant to both proposed phases, including evidence concerning contract formation and performance, payment history, project funding, financing representations, and the reasons for SmartLabs' nonpayment. Truebeck disputes the degree of that overlap and contends much of the construction evidence will be unique to Phase 1. The Court need not resolve that dispute now. Further discovery should clarify whether the overlap is sufficiently limited to make separate trials more efficient or sufficiently substantial that bifurcation would instead require duplicative witness testimony and documentary evidence.

Third, approximately eight motions for summary adjudication remain pending or have been reserved for hearing. Those motions may eliminate claims or defenses or otherwise materially alter the issues requiring trial. Although Truebeck argues the outcome of those motions would merely expand or contract Phase 1, the Court concludes that defining the phases before resolving dispositive motions risks structuring trial around claims or defenses that may not ultimately remain in the case.

Fourth, the Court is not persuaded that denial of bifurcation at this stage will materially prejudice Truebeck or the Trade Partners. The mechanics-lien claims are equitable and will be determined by the Court. The Court recognizes that Phase 1 also contains legal claims subject to jury determination and that Truebeck has a legitimate concern regarding presentation of fraud, alter-ego and other potentially prejudicial evidence to the same jury. That concern may support bifurcation or other appropriate trial-management orders once the issues to be tried are known. On the present record, however, it does not justify fixing the structure of a trial for which no date has yet been set and whose claims and evidentiary boundaries remain subject to substantial change.

Nor does the Court's determination concerning Truebeck's separate request for a long-account reference require bifurcation at this time. To the extent a referee conducts a limited accounting under Code of Civil Procedure section 639, that process may further define and narrow the factual accounting issues that ultimately must be tried. The Court can consider the effect of that process when determining the appropriate trial structure.

Finally, the Court does not conclude that bifurcation would be inconsistent with the prior consolidation of these actions. Consolidation and bifurcation are both case-management devices designed to promote efficiency. The prior consolidation is relevant, however, because it was intended to avoid duplicative proceedings involving common issues. Any future bifurcation proposal therefore should demonstrate that the proposed phases will preserve those efficiencies rather than require substantial duplication of witnesses, evidence, or judicial factfinding.

Accordingly, the Court finds that Truebeck has not established **on the present record** that its proposed bifurcation would promote the convenience of witnesses, the ends of justice, expedition and economy, or the avoidance of prejudice within the meaning of Code of Civil Procedure sections 598 and 1048, subdivision (b).

The Motion is therefore **DENIED WITHOUT PREJUDICE**.

This ruling does not determine that bifurcation will ultimately be inappropriate. Truebeck or any other party may renew a request for bifurcation after the pleadings and parties are settled, the pending dispositive motions have sufficiently defined the claims remaining for trial, and discovery has progressed sufficiently to permit the Court to assess the actual witnesses, evidence, and issues likely to be presented in each proposed phase.

Any renewed motion should specifically identify: (1) the claims and issues proposed for each phase; (2) which issues are jury-triable and which are for the Court; (3) the anticipated witnesses in each phase and any expected overlap; (4) the principal categories of evidence common to multiple phases; (5) the factual findings from an earlier phase that would bind or materially narrow a later phase; and (6) the anticipated effect of any long-account reference on the issues remaining for trial.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM

LINE: 6

24-CIV-01921

TRUEBECK CONSTRUCTION, INC., ET AL VS. SETH TAYLOR, ET AL

TRUEBECK CONSTRUCTION, INC.
SETH TAYLOR

A ROBERT ROSIN

PLAINTIFF, CROSS COMPLAINANT, and CROSS DEFENDANT, TRUEBECK CONSTRUCTION, INC.'S MOTION FOR APPOINTMENT OF A REFEREE TO TAKE A LONG ACCOUNT PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 639

TENTATIVE RULING:

For the reasons stated below, Plaintiff and Cross-Defendant Truebeck Construction, Inc.'s ("Truebeck") Motion for Appointment of a Referee to Take a Long Account is **GRANTED IN PART**.

The Court finds that a limited reference pursuant to Code of Civil Procedure section 639, subdivision (a)(1), is warranted for examination and reconciliation of the construction accounts relevant to the amounts asserted in Truebeck's and the Trade Partners' mechanics liens. The reference, however, shall be limited to technical accounting matters. The referee shall not determine the legal validity or enforceability of any mechanics lien, the ultimate reasonable value of the work under Civil Code section 8430, or any other legal or equitable issue reserved for determination by the Court.

Selection of the referee and the terms governing compensation are deferred pending compliance with Code of Civil Procedure sections 639 and 640 and California Rules of Court, rules 3.922–3.924, as set forth below.

Truebeck's Request for Judicial Notice is **GRANTED** as to the existence and contents of the identified court records, but not as to the truth of disputed factual matters contained therein. The May 26, 2021 order entered in *Evans Brothers, Inc. v. Proset, Inc.*, Santa Clara County Superior Court Case No. 20CV374917, is a trial court order and is not binding authority.

BACKGROUND

These consolidated actions arise from disputes concerning SmartLabs' lease and an approximately \$80 million tenant-improvement construction project at 750 Gateway Boulevard in South San Francisco. Truebeck served as general contractor, SmartLabs was the tenant, and Defendant and Cross-Complainant BMR-Gateway of Pacific II LLC ("BMR") owns the property. Truebeck and numerous subcontractors and suppliers assert mechanics liens and related claims arising from approximately \$24.36 million in allegedly unpaid construction work. The litigation also includes claims concerning SmartLabs' lease obligations, financing, alleged misrepresentations, indemnity, alter ego liability, and the conduct of various SmartLabs-related entities, officers, directors, and investors.

The accounting implicated by those claims includes multiple Statements of Work, 16 payment applications, retention, change orders, payments from multiple funding sources, and claims by more than 20 subcontractors and suppliers at different contractual tiers.

Truebeck seeks appointment of a referee pursuant to Code of Civil Procedure section 639 to take a long account. As originally framed, the motion requested that the referee determine both the amounts and “validity” of Truebeck’s and the Trade Partners’ mechanics liens.

BMR opposes the motion. BMR argues, among other things, that the mechanics-lien statutes provide a discrete method for determining lien amounts, the size and complexity of the project do not establish a long account, the proposed reference would impermissibly delegate judicial functions, discovery remains incomplete, and the cost of the proposed reference would outweigh any efficiencies.

In reply, Truebeck narrows the proposed scope. Truebeck states that questions of law and ultimate determinations concerning lien validity and reasonable value under Civil Code section 8430 may remain with the Court, while the referee examines the underlying construction accounts and reports factual accounting findings.

LEGAL STANDARD

Code of Civil Procedure section 639, subdivision (a)(1), permits the Court, without the parties’ consent, to appoint a referee “[w]hen the trial of an issue of fact requires the examination of a long account on either side.” In such circumstances, the referee may be directed to hear and decide the issue or report upon specified questions of fact. Section 639, subdivision (a)(2), separately authorizes a reference when the taking of an account is necessary for the information of the Court before judgment.

A long-account reference is not limited to an action formally pleading an accounting cause of action. (*United States Fidelity & Guaranty Co. v. Superior Court* (1988) 204 Cal.App.3d 1513, 1527–1529.) Moreover, the California Supreme Court has expressly upheld a reference under section 639 in mechanics-lien litigation where examination of a long account was necessary. (*Barker Bros., Inc. v. Coates* (1931) 211 Cal. 756, 757–758.)

The authority of a referee appointed under section 639 is nevertheless limited. A referee may determine the technical accounting methodology necessary to examine a long account and make factual findings based upon the accounting records, but judicial functions such as contract interpretation and enforceability may not be delegated to the referee. (*De Guere v. Universal City Studios, Inc.* (1997) 56 Cal.App.4th 482, 499–503.) The referee’s findings in a nonconsensual reference are advisory, and the Court independently considers those findings and any objections before deciding whether to adopt them. (Code Civ. Proc., § 644, subd. (b).)

DISCUSSION

A Limited Long-Account Reference Is Warranted

The Court is persuaded that the accounting issues presented here fall within Code of Civil Procedure section 639, subdivision (a)(1).

The need for a reference does not arise merely because this is a large construction project or because substantial sums are at issue. Rather, determining the amounts claimed requires reconciliation of multiple interrelated construction accounts, including 16 payment applications, change orders, retention, multiple sources of payment and financing, numerous subcontractors and suppliers at different contractual tiers, and potentially overlapping lien claims that must be identified and accounted for in determining net amounts.

BMR argues that each lien ultimately involves the relatively straightforward statutory calculation of the lesser of the contract price or reasonable value, subject to applicable deductions. That describes the legal measure of the lien but does not eliminate the accounting necessary to establish the factual amounts to which that measure will be applied. Section 639, subdivision (a)(1), asks whether trial of an issue of fact requires examination of a long account; it does not require that the underlying statutory cause of action itself expressly mandate an accounting. (*United States Fidelity & Guaranty Co.*, supra, 204 Cal.App.3d at pp. 1527–1529.)

Nor is *Barker Bros.* rendered inapplicable because it was decided in 1931. It remains a decision of the California Supreme Court directly recognizing the propriety of a section 639 long-account reference in mechanics-lien litigation. (*Barker Bros.*, supra, 211 Cal. at pp. 757–758.)

The fact that discovery is ongoing likewise does not require denial of the motion. Section 639, subdivision (a)(1), contains no requirement that discovery be completed before a reference may be ordered. The referee's accounting necessarily will proceed upon records obtained through the ordinary discovery process. (*De Guere*, supra, 56 Cal.App.4th at pp. 499–500.) The present order does not appoint the referee as a discovery referee under section 639, subdivision (a)(5), and does not authorize the referee to adjudicate discovery disputes.

The Scope Proposed in the Motion Is Overbroad

BMR is correct that the reference cannot extend to all matters described in Truebeck's original motion.

In particular, the referee will not be authorized to determine whether a mechanic's lien is legally "valid." Those determinations may implicate statutory notice and recordation requirements, timeliness, waiver, subordination, priority, contract interpretation, and other matters reserved to the Court. Nor will the referee make the ultimate determination of reasonable value under Civil Code section 8430.

Consistent with *De Guere*, the reference shall instead be limited to the technical accounting examination necessary to assist the Court. Subject to further refinement in the written appointment order, the referee may:

1. Examine and reconcile the construction accounts, payment applications, invoices, approved or disputed change orders, retention records, credits, and payment records relevant to Truebeck's and the Trade Partners' lien amounts;
2. Determine and report the amounts billed, approved, paid, credited, retained, or remaining unpaid as reflected in the accounting records;
3. Trace payments and relevant funding sources to the extent necessary to reconcile the construction accounts;
4. Identify duplication or overlap among amounts asserted by Truebeck and the Trade Partners and calculate the resulting accounting balances; and

5. Identify disputed accounting entries or methodologies and report the referee's factual findings and accounting conclusions to the Court.

The referee shall not determine statutory lien validity, compliance with statutory notice or recordation requirements, waiver, subordination, lien priority, contract interpretation or enforceability, fraud, alter ego, or other legal or equitable defenses. The referee shall not decide issues presented in any pending dispositive motion. To the extent resolution of the accounting depends upon a legal determination reserved to the Court, the referee may request instructions or report alternative calculations based upon the competing assumptions, leaving the underlying legal determination to the Court. (*De Guere*, supra, 56 Cal.App.4th at pp. 499–503.)

The referee's report and recommendations shall be advisory only. (Code Civ. Proc., § 644, subd. (b).) The Court retains ultimate responsibility for deciding the lien claims and will independently consider the referee's findings, together with any objections and responses.

Selection of Referee and Compensation

The Court will determine the specific referee and compensation terms by separate written order complying with Code of Civil Procedure section 639, subdivision (d), and California Rules of Court, rule 3.922.

Truebeck has submitted three proposed referees. Because BMR opposes the reference and the Court has materially narrowed its scope, any party wishing to submit nominees pursuant to Code of Civil Procedure section 640, subdivision (b), shall file and serve its nominees no later than **September 17, 2026**. Truebeck may stand on the nominees already submitted with its motion.

Any party contending that it has an economic inability to pay a pro rata share of the referee's fees under Code of Civil Procedure section 639, subdivision (d)(6), shall file and serve supporting evidence by **September 17, 2026**. The Court will determine a fair and reasonable interim apportionment of the reference costs after selection of the referee and consideration of the anticipated cost of the reference.

No later than **September 21, 2026**, the parties shall meet and confer and Truebeck shall lodge a proposed written appointment order complying with Code of Civil Procedure section 639, subdivision (d), and California Rules of Court, rule 3.922, including the referee's name and contact information, the maximum hourly rate, any proposed initial limitation on compensable hours, allocation of fees, the scope of the reference consistent with this ruling, and the extent, if any, to which court facilities or personnel may be used. If the parties cannot agree on the contents of the proposed order, any opposing party may lodge a competing proposed order on the same date.

Before beginning service, the referee selected by the Court shall file the certification and make the disclosures required by California Rules of Court, rule 3.924.

Truebeck's request that referee fees be declared recoverable by the prevailing party at this stage of the litigation is **DENIED WITHOUT PREJUDICE**. The Court reserves all issues concerning ultimate recovery or reallocation of referee fees until an appropriate later stage of the proceedings.

ORDER

Truebeck's Motion for Appointment of a Referee to Take a Long Account is **GRANTED IN PART**, subject to the limitations stated above. The Court finds that examination of a long account is warranted under Code of Civil Procedure section 639, subdivision (a)(1), but declines to delegate the ultimate validity of the mechanics liens, the determination of reasonable value under Civil Code section 8430, or other legal or equitable issues to the referee.

The specific referee, compensation, allocation of fees, and other matters required by Code of Civil Procedure section 639, subdivision (d), and California Rules of Court, rule 3.922, will be determined by further written order.

The reference does not stay discovery, pending motions, or other proceedings in these consolidated actions absent further order of the Court.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM

LINE: 7

24-CIV-02988

FRANCISCO JAVIER OROZCO-LOPEZ, ET AL VS. NICOLE RENEE CAZARES, ET AL

FRANCISCO JAVIER OROZCO-LOPEZ
NICOLE RENEE CAZARES

DANIEL J. RAFII
IAN A. SCHAEFFER

DEFENDANTS ALEJANDRO CAZARES and NICHOLE CAZARES' MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

TENTATIVE RULING:

For the reasons stated below, Defendants Alejandro Cazares and Nichole Renee Cazares' Motion for Summary Judgment is **GRANTED**. Defendants' alternative request for summary adjudication is **MOOT**.

The Court notes that Defendants' motion papers do not identify the location of the hearing as required by California Rules of Court, rule 3.1110(b)(1). Department 2 is located at the Northern Branch, Courtroom K, 1050 Mission Road, South San Francisco, California 94080. Plaintiffs, however, obtained the order continuing the hearing on this Motion to September 10, 2026, and no prejudice from the omission is shown. The Court therefore considers the Motion on its merits.

A defendant moving for summary judgment bears the initial burden of showing that one or more elements of the plaintiff's cause of action cannot be established or that a complete defense exists. (Code Civ. Proc., § 437c, subd. (p)(2).) If that burden is met, the burden shifts to the plaintiff to demonstrate a triable issue of material fact. (Ibid.) In determining the motion, the Court does not weigh the evidence and must view the evidence and reasonable inferences in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843; *Weiss v. People ex rel. Department of Transportation* (2020) 9 Cal.5th 840, 864.)

Plaintiffs' sole cause of action is for negligence arising from a March 14, 2023 automobile collision involving a vehicle registered to Defendant Alejandro Cazares. Defendants contend that the vehicle had been taken and driven without their permission by an unidentified third party and that Defendants therefore owed Plaintiffs no duty with respect to that person's operation of the vehicle. The evidence submitted in support of the Motion establishes that the vehicle had been parked at Defendants' residence; the vehicle's keys were accounted for; the driver was not a permitted user; the members of Defendants' household identified in the evidence were elsewhere at the time of the collision; and Plaintiffs' own testimony does not identify either Defendant or a member of their household as the driver.

Ordinarily, absent special circumstances, the owner of a motor vehicle owes no duty to protect third persons from injuries caused by a thief or other unauthorized person who takes and operates the vehicle. (*Richards v. Stanley* (1954) 43 Cal.2d 60, 65–66; *Murphy v. Pina* (2025) 115 Cal.App.5th 305.) Special circumstances may give rise to a duty where the circumstances create an unusually foreseeable risk that the vehicle will be taken and negligently operated. (*Hergenrether v. East* (1964) 61 Cal.2d 440, 444–445.) Examples include leaving a

vehicle accessible under circumstances amounting to an invitation to theft or leaving unusually dangerous machinery readily available to persons likely to misuse it.

No such circumstances are shown here. Unlike cases imposing a duty, Defendants did not leave the vehicle unlocked with the keys in the ignition or otherwise make it unusually accessible to unauthorized users. The record does not establish circumstances from which Defendants reasonably should have anticipated that an unauthorized person would take the vehicle and negligently operate it. Indeed, the facts here present a less foreseeable risk than those found insufficient to impose a duty in *Richards* and *Murphy*.

Defendants have therefore met their initial burden of demonstrating that the duty element of Plaintiffs' negligence claim cannot be established. (Code Civ. Proc., § 437c, subd. (p)(2).) Plaintiffs filed no opposition and submitted no evidence raising a triable issue of material fact. The absence of opposition does not itself warrant summary judgment, but Defendants' affirmative evidentiary showing satisfies their initial burden and remains uncontroverted.

Accordingly, Defendants' Motion for Summary Judgment is **GRANTED**.

Defendants' Request for Judicial Notice is **GRANTED** as to the existence and contents of the Complaint and the identified police reports. Judicial notice does not extend to the truth of disputed factual statements contained in those documents. (Evid. Code, §§ 452, 453; *Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400.)

Judgment shall be entered in favor of Defendants Alejandro Cazares and Nichole Renee Cazares and against Plaintiffs Francisco Javier Orozco Lopez and Maria Del Carmen Cardenas Villa.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants shall prepare a written order and judgment consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM

LINE: 8

25-CIV-04197

HAB SIAM VS. BRAD GERSTNER, ET AL

HAB SIAM
BRAD GERSTNER

MATTHEW DITON
ANJALI PRASAD VADILLO

DEFENDANT BRAD GERSTNER'S DEMURRER TO FIRST AMENDED COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Defendant Brad Gerstner's ("Gerstner") Demurrer to Plaintiff Hab Siam's ("Plaintiff") First Amended Complaint ("FAC") is **SUSTAINED WITH LEAVE TO AMEND** as to the First through Sixth and Eighth through Tenth Causes of Action and **OVERRULED** as to the Seventh Cause of Action.

FIRST, SECOND, THIRD, FOURTH, FIFTH, EIGHTH, NINTH AND TENTH CAUSES OF ACTION

Plaintiff alleges Gerstner is the alter ego of Defendant Altimeter Capital Management, LP ("Altimeter") as a basis for imposing liability on Gerstner. To establish alter-ego liability, a plaintiff must allege sufficient facts showing both a unity of interest and ownership such that the separate personalities of the entity and its owner no longer exist, and that an inequitable result would follow if the entity alone were treated as the actor. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 415.)

The FAC alleges that Gerstner founded Altimeter, is its sole legal and beneficial equity owner, and exclusively controls Altimeter and its investment funds. (FAC, ¶¶ 2–4.) Those allegations establish ownership and control, but do not allege additional facts demonstrating the requisite unity of interest or an inequitable result from recognition of Altimeter's separate existence. Sole ownership and control, without more, are insufficient. (*Leek*, supra, 194 Cal.App.4th at p. 415.)

Accordingly, to the extent Gerstner's liability on these causes of action is premised solely upon alter ego, the Demurrer is **SUSTAINED WITH LEAVE TO AMEND**. The Court does not reach Gerstner's remaining challenges to these causes of action, which substantially overlap with the arguments raised in Altimeter's separately filed demurrer.

SIXTH CAUSE OF ACTION — LIBEL PER SE

The Sixth Cause of Action alleges that Gerstner sent a text message to Plaintiff's current employer accusing Plaintiff of dishonesty and unethical legal practices by "fabricating" claims and "shaking down" Gerstner and Altimeter. (FAC, ¶¶ 82–83.)

The words constituting an alleged libel must be specifically identified, although they need not necessarily be pleaded verbatim. (*Medical Marijuana, Inc. v. ProjectCBD.com* (2020) 46 Cal.App.5th 869, 893–894.) In

determining whether a written statement is actionable, the statement must also be considered in the context in which it was made. (*John Doe 2 v. Superior Court* (2016) 1 Cal.App.5th 1300, 1312–1313.)

Here, the FAC quotes only isolated words from the text message and otherwise characterizes Plaintiff's interpretation of the communication. The allegations do not provide sufficient language or context for the Court to determine whether the challenged written statements are reasonably susceptible of a defamatory meaning.

The Demurrer to the Sixth Cause of Action is therefore **SUSTAINED WITH LEAVE TO AMEND**.

SEVENTH CAUSE OF ACTION — SLANDER PER SE

The Seventh Cause of Action alleges that Gerstner told Altimeter employees that Plaintiff had been “fired” because he “screwed up” an important legal project and that Plaintiff's work as General Counsel was incompetent. (FAC, ¶ 136.)

Civil Code section 46, subdivision (3), encompasses oral statements that tend directly to injure a person in his profession by imputing professional disqualification or incompetence. A statement falling within that subdivision constitutes slander per se and requires no allegation or proof of actual damages. (*Regalia v. The Nethercutt Collection*(2009) 172 Cal.App.4th 361, 367–368.)

Contrary to Gerstner's argument, Plaintiff expressly alleges that Gerstner stated Plaintiff's work as General Counsel was incompetent. Taken as true for purposes of demurrer, the allegation is sufficient to plead slander per se under Civil Code section 46, subdivision (3).

The Demurrer to the Seventh Cause of Action is **OVERRULED**.

Plaintiff shall file and serve any Second Amended Complaint within 10 days after service of written notice of the Court's order.

2:00 PM

LINE: 9

25-CIV-04197

HAB SIAM VS. BRAD GERSTNER, ET AL

HAB SIAM
BRAD GERSTNER

MATTHEW DITON
ANJALI PRASAD VADILLO

DEFENDANT BRAD GERSTNER and ALTIMETER CAPITAL MANAGEMENT, LP'S MOTION TO STRIKE FIRST AMENDED COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Defendants Altimeter Capital Management, LP and Brad Gerstner's Motion to Strike Portions of the First Amended Complaint is **GRANTED IN PART AND DENIED IN PART**.

As to Gerstner, the Motion to Strike the prayer for punitive damages is **DENIED**. The Seventh Cause of Action for slander per se remains adequately pleaded, and Defendants' challenge to punitive damages is premised upon the asserted failure of the underlying tort claims. The remainder of Gerstner's Motion to Strike is **MOOT** in light of the Court's ruling sustaining his Demurrer to the claims upon which the remaining requested relief depends.

As to Altimeter, the Motion to Strike the prayer for punitive damages is **DENIED** consistent with the Court's ruling on Altimeter's Demurrer to the Fifth Cause of Action for Promissory Fraud.

Altimeter's Motion to Strike the prayer for reasonable attorney's fees and costs is **MOOT** consistent with the Court's ruling on Altimeter's Demurrer to the Eighth Cause of Action for Failure to Pay Wages Owed at Termination. If that cause of action remains pleaded, Labor Code section 218.5 permits recovery of reasonable attorney's fees and costs in an action for nonpayment of wages.

Altimeter's Motion to Strike the prayer for an accounting is **DENIED**. Although an accounting is generally unavailable where a plaintiff seeks a sum certain (*Civic Western Corp. v. Zila Industries, Inc.* (1977) 66 Cal.App.3d 1, 14), the FAC alleges that Plaintiff is entitled to profit-sharing distributions in addition to a guaranteed minimum compensation amount and that the amount of those distributions has not yet been determined. (FAC, ¶¶ 32, 106.) Altimeter therefore has not established at the pleading stage that an accounting is unavailable as a matter of law.

Altimeter's Motion to Strike the prayer for an equitable remedy to accelerate vesting is **GRANTED WITH LEAVE TO AMEND**. Other than authority that courts have broad discretion in fashioning an equitable remedy (see *Shapiro v. Sutherland* (1998) 64 Cal.App.4th 1534, 1552), Plaintiff fails to provide any authority to support that he is entitled to such relief based on the facts alleged in the FAC. The court therefore is not persuaded that such relief is proper.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM

LINE: 10

25-CIV-04197

HAB SIAM VS. BRAD GERSTNER, ET AL

HAB SIAM
BRAD GERSTNER

MATTHEW DITON
ANJALI PRASAD VADILLO

DEFENDANT ALTIMETER CAPITAL MANAGEMENT, LP'S DEMURRER TO FIRST AMENDED COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Defendant Altimeter Capital Management, LP's Demurrer to the First through Fifth, Eighth, and Ninth Causes of Action in Plaintiff Hab Siam's First Amended Complaint is **SUSTAINED WITH LEAVE TO AMEND** as to the Fourth, Eighth, and Ninth Causes of Action and **OVERRULED** as to the First, Second, Third, and Fifth Causes of Action. (Code Civ. Proc., § 430.10, subd. (e).)

FIRST CAUSE OF ACTION — ANTICIPATORY REPUDIATION

A cause of action for anticipatory repudiation requires: (1) a valid contract; (2) the plaintiff's performance up to the time of repudiation, or a valid excuse for nonperformance; (3) the plaintiff's readiness, willingness, and ability to perform; (4) the defendant's unequivocal repudiation before performance was due; and (5) resulting damages. (Civ. Code, § 1440; *Taylor v. Johnston* (1975) 15 Cal.3d 130; *Daum v. Superior Court* (1964) 228 Cal.App.2d 283.)

Altimeter first argues that Plaintiff has not sufficiently alleged the existence of a contract. As discussed below, however, the FAC sufficiently alleges an oral compensation agreement. Altimeter further argues that Plaintiff has not pleaded an unequivocal repudiation.

The FAC alleges that on January 29, 2024, Altimeter provided Plaintiff with a compensation spreadsheet presented as a final "take it or leave it" position and asserted that Plaintiff was entitled to no more than \$4,562,113 in vested fund profits. (FAC, ¶¶ 96–99.) Taken together, these allegations sufficiently plead, for purposes of demurrer, an unequivocal repudiation of the alleged compensation agreement.

The Demurrer to the First Cause of Action is **OVERRULED**.

SECOND CAUSE OF ACTION — BREACH OF ORAL CONTRACT

The elements of a claim for breach of oral contract are the same as those for breach of a written contract: existence of a contract, plaintiff's performance or excuse for nonperformance, defendant's breach, and resulting damages. (*Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 453.)

Definiteness

To be enforceable, contractual terms must be sufficiently definite to permit the Court to determine the scope of the parties' obligations, whether a breach occurred, and an appropriate remedy. (*Weddington Productions, Inc. v. Flick*(1998) 60 Cal.App.4th 793, 811; *Ladas v. California State Automobile Assn.* (1993) 19 Cal.App.4th 761, 770.)

The FAC alleges that Altimeter guaranteed Plaintiff minimum total compensation of \$45 million for 2021 through 2025, including an annual salary of \$1.5 million, with the remainder to be paid through profit-sharing distributions and other compensation. (FAC, ¶¶ 28–34.) Although the allegations concerning the precise sources of the nonsalary compensation are less definite, the alleged minimum compensation obligation is sufficiently definite at the pleading stage to permit determination of breach and a remedy.

The Demurrer on this ground is **OVERRULED**.

STATUTE OF FRAUDS

Altimeter contends that the alleged oral agreement is barred by Civil Code section 1624, subdivision (a)(1). The one-year provision applies only where, by the terms of the agreement, performance cannot possibly be completed within one year. (*Abeyta v. Superior Court* (1993) 17 Cal.App.4th 1037, 1042; *White Lighting Co. v. Wolfson* (1968) 68 Cal.2d 336, 343.)

On the face of the FAC, Altimeter has not established as a matter of law that the alleged agreement was incapable of performance within one year. The statute-of-frauds defense therefore does not provide a basis for sustaining the Demurrer at the pleading stage.

The Demurrer on this ground is **OVERRULED**.

ILLUSORINESS

Altimeter argues that the alleged agreement is illusory because Plaintiff allegedly could terminate his employment at any time yet still claim entitlement to the guaranteed compensation. A contract is illusory where one party retains an unfettered or arbitrary right to modify or terminate the agreement or otherwise assumes no obligation. (*Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 385.)

The FAC alleges that Plaintiff remained employed by Altimeter and continued providing services after the alleged compensation agreement was made. On the face of the pleading, the agreement therefore does not fail for lack of consideration or constitute an illusory promise as a matter of law.

The Demurrer on this ground is **OVERRULED**.

STATUTE OF LIMITATIONS

Altimeter argues that the two-year statute of limitations under Code of Civil Procedure section 339, subdivision (1), bars the claim because the alleged agreement was breached in December 2020. The FAC, however, alleges that the operative repudiation occurred on January 29, 2024, and this action was filed on

June 2, 2025, within the two-year limitations period. Nothing on the face of the FAC establishes that Plaintiff's claim accrued in 2020.

The Demurrer on this ground is **OVERRULED**.

Accordingly, the Demurrer to the Second Cause of Action is **OVERRULED**.

THIRD CAUSE OF ACTION — PROMISSORY ESTOPPEL

Promissory estoppel requires a clear and unambiguous promise, reasonable and foreseeable reliance, substantial detriment, and resulting injury. (*Granadino v. Wells Fargo Bank, N.A.* (2015) 236 Cal.App.4th 411, 416–417.)

Altimeter argues that the alleged promise is too indefinite and that Plaintiff's reliance is pleaded only in conclusory terms. The FAC, however, alleges an oral promise to provide Plaintiff minimum total compensation of \$45 million for 2021 through 2025. (FAC, ¶ 110.) At the pleading stage, that alleged promise is sufficiently definite to support a promissory-estoppel theory. (See *Moncada v. West Coast Quartz Corp.* (2013) 221 Cal.App.4th 768, 780.)

The Demurrer to the Third Cause of Action is **OVERRULED**.

FOURTH CAUSE OF ACTION — QUANTUM MERUIT

Quantum meruit requires allegations that the plaintiff rendered services at the defendant's request, the services were intended to and did benefit the defendant, and the reasonable value of those services remains unpaid. (*Pacific Bay Recovery, Inc. v. California Physicians' Service, Inc.* (2017) 12 Cal.App.5th 200.)

A quasi-contract claim ordinarily cannot be maintained where an enforceable agreement governs the same compensation. (*Hedging Concepts, Inc. v. First Alliance Mortgage Co.* (1996) 41 Cal.App.4th 1410, 1419.) Although alternative pleading is permitted, the quasi-contract theory must actually be pleaded as an alternative to the asserted contract. (*Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal.App.4th 1342, 1389–1390.)

Here, Plaintiff affirmatively alleges the existence and enforceability of the 2020 Compensation Agreement and seeks the same compensation through quantum meruit. The Fourth Cause of Action does not adequately plead that theory in the alternative.

The Demurrer to the Fourth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

FIFTH CAUSE OF ACTION — PROMISSORY FRAUD

Promissory fraud is a subspecies of fraud based upon a promise made without any intention of performing it. (Civ. Code, § 1710, subd. (4).) Fraud must generally be pleaded with specificity, including facts showing how, when, where, to whom, and by what means the representation was made. (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1059–1060.)

Altimeter argues that Plaintiff alleges only subsequent nonperformance, which standing alone is insufficient to establish fraudulent intent. (*Tenzer v. Superscope, Inc.* (1985) 39 Cal.3d 18, 30.) At the pleading stage, however, intent not to perform may be alleged generally. (*Beckwith*, supra, 205 Cal.App.4th at p. 1060.)

The FAC alleges that in December 2020, Gerstner, acting on behalf of Altimeter, orally represented that Plaintiff would receive minimum compensation of \$45 million for 2021 through 2025 and alleges that the promise was made without an intention to perform. (FAC, ¶ 122.) Reading the pleading as a whole, the allegations sufficiently identify who made the representation, on whose behalf it was made, when it was made, its substance, and the alleged fraudulent intent.

The Demurrer to the Fifth Cause of Action is **OVERRULED**.

EIGHTH CAUSE OF ACTION — FAILURE TO PAY WAGES OWED AT TERMINATION

Labor Code sections 201, 202, and 203 govern payment of earned wages upon termination or resignation. “Wages” include amounts owed for labor performed and may include incentive compensation such as bonuses and profit-sharing benefits. (Lab. Code, § 200, subd. (a); *Schachter v. Citigroup, Inc.* (2009) 47 Cal.4th 610, 617.) Whether incentive compensation has been earned, however, depends upon the terms governing entitlement to that compensation. (*Id.* at p. 621.)

Plaintiff alleges that the disputed compensation included profit-sharing interests and other nonsalary compensation. The FAC, however, does not sufficiently allege facts establishing that the particular profit-sharing or incentive compensation sought in this cause of action had been fully earned and was due and payable at the time Plaintiff’s employment ended. The allegations concerning the alleged guaranteed minimum compensation do not, without further factual allegations concerning the terms governing vesting or entitlement, establish that the disputed amounts constituted earned wages payable upon termination.

The Demurrer to the Eighth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

NINTH CAUSE OF ACTION — VIOLATION OF THE UNFAIR COMPETITION LAW

The Unfair Competition Law prohibits unlawful, unfair, or fraudulent business acts or practices. (Bus. & Prof. Code, § 17200.) A private plaintiff must also allege injury in fact and loss of money or property as a result of the alleged unfair competition. (*Id.*, § 17204.)

As pleaded, the Ninth Cause of Action is predicated upon Plaintiff’s alleged wage violation under Labor Code section 202. Because the FAC does not presently state facts sufficient to support the underlying wage claim, the derivative UCL claim is likewise insufficient.

The Demurrer to the Ninth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

Plaintiff may file and serve a Second Amended Complaint within **10 days after service of written notice of the Court’s order**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare a written order consistent with the Court’s ruling for the Court’s signature pursuant to California

Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM

LINE: 11

25-CIV-08970

JOHN DOE VS. MARINA ALLEN, ET AL

**JOHN DOE
MARINA ALLEN**

**LAUREL MOUSSEAU
CONNOR M DAY**

PLAINTIFF JOHN DOE’S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

TENTATIVE RULING:

For the following reasons, Plaintiff John Doe’s Motion for Leave to File a First Amended Complaint is **GRANTED** as to the proposed amended pleading attached to the Supplemental Declaration of Laurel Mousseau filed September 2, 2026.

The Court may, in furtherance of justice and upon such terms as may be proper, allow amendment of a pleading. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.) California follows a policy of great liberality in allowing amendments to pleadings so that cases may be decided on their merits, provided the amendment does not prejudice the substantial rights of the opposing party. (*Board of Trustees of Leland Stanford Junior University v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163.)

California Rules of Court, rule 3.1324 sets forth the procedural requirements for a motion for leave to amend, including the contents of the motion and supporting declaration. Plaintiff did not file a separate noticed motion following the Court’s order shortening time, apparently relying on the ex parte application, supporting declaration, proposed pleading, and the Court’s order setting the present hearing. Defendants nevertheless received notice, filed a substantive opposition, and do not contend that the absence of a separately filed notice of motion impaired their ability to oppose the requested amendment. Under these circumstances, the Court declines to deny leave based solely on that procedural irregularity.

Trial has not been set. Defendants principally contend that Plaintiff’s proposed PAGA amendments are legally insufficient and would cause unnecessary prejudice and additional discovery. In reply, however, Plaintiff submitted a revised proposed First Amended Complaint that omits the PAGA claim under Labor Code section 202, omits the challenged representative meal- and rest-period claims, omits the PAGA allegations against RxAccess LLC, and more specifically alleges the basis for PAGA and Labor Code section 558.1 liability against Defendant Marina Allen individually. These revisions substantially address the objections raised in Defendants’ opposition and correspond to the limitations Defendants alternatively requested.

No sufficient prejudice from permitting the revised amendment has been demonstrated, particularly where no trial date has been set. To the extent Defendants continue to challenge the legal sufficiency of the amended allegations, those issues are more appropriately addressed through a demurrer, motion for

judgment on the pleadings, or other appropriate responsive proceeding. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Accordingly, the Motion is **GRANTED**. Plaintiff shall file and serve the First Amended Complaint attached to the Supplemental Declaration of Laurel Mousseau filed September 2, 2026, within 10 days of notice of entry of the order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

**UD LAW AND MOTION CALENDAR
THURSDAY, SEPTEMBER 10, 2026**

2:00 PM

LINE: 1

26-UDU-00738

GRAND PRIX FIXED LESSEE LLC, A DELAWARE LIMITED LIABILITY COMPANY VS. DENISE WEEKS

**GRAND PRIX FIXED LESSEE LLC, A DELAWARE LIMITED LIABILITY COMPANY
DENISE WEEKS**

**THOMAS S. MCCONNELL
PRO SE**

PLAINTIFF GRAND PRIX FIXED LESSEE LLC, A DELAWARE LIMITED LIABILITY COMPANY'S MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

For the reasons stated below, Plaintiff Grand Prix Fixed Lessee LLC's Motion for Summary Judgment is **DENIED**.

A plaintiff moving for summary judgment bears the initial burden of establishing each element necessary to judgment and that there is no defense to the action. (Code Civ. Proc., § 437c, subd. (p)(1).) The absence of an opposition does not relieve the moving party of that burden.

Plaintiff has established the ordinary elements of unlawful detainer under Code of Civil Procedure section 1161, subdivision (2). The evidence establishes ownership, an oral day-to-day occupancy agreement, Defendant's failure to pay \$44,763 in room charges, service of a three-day notice demanding payment or possession, expiration of the notice period without payment or surrender, and Defendant's continued possession. The Three-Day Notice identifies the amount and period for which payment is sought, supplies the information required for payment, and expressly elects forfeiture of the occupancy agreement.

Plaintiff has not, however, established that Defendant's tenancy is exempt from the Tenant Protection Act of 2019. (Civ. Code, § 1946.2.) The verified Complaint alleges that the tenancy is exempt under Civil Code section 1940, subdivision (b)(2). That exemption requires more than operation of the premises as a hotel; it requires the innkeeper to retain a right of access and control and to provide or offer all of the services and circumstances enumerated in section 1940, subdivision (b)(2)(A)-(E). Plaintiff's moving evidence does not establish those statutory requirements.

The evidence instead establishes that Defendant continuously and lawfully occupied a room at the property beginning in 2020 and therefore exceeded the period of occupancy at which Civil Code section 1946.2's just-cause protections ordinarily apply. Although nonpayment constitutes at-fault just cause and Plaintiff's Three-Day Notice adequately identifies that ground, Plaintiff has submitted no evidence establishing compliance with the additional notice requirements of Civil Code section 1946.2, subdivision (f). Section 1946.2,

subdivision (g), provides that an owner's failure to comply with the section renders the written termination notice void.

Accordingly, Plaintiff has not carried its initial burden of establishing either that the tenancy is exempt from Civil Code section 1946.2 or, alternatively, that Plaintiff complied with the requirements applicable to a covered tenancy. Summary judgment is therefore **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM

LINE: 2

26-UDU-00847

BLUE WINDOW, LLC VS. REAL AUDITORY AUDITORY DISPLAY AUGMENTATION DEVICES, INC, ET AL

**BLUE WINDOW, LLC
REAL AUDITORY AUDITORY DISPLAY AUGMENTATION DEVICES, INC**

**DEAN C. ROSSI
ANTONY D NASH**

PLAINTIFF BLUE WINDOW, LLC'S MOTION FOR SUMMARY ADJUDICATION OF ITS UNLAWFUL DETAINER CAUSE OF ACTION AND IMMEDIATE RIGHT TO POSSESSION

TENTATIVE RULING:

For the reasons stated below, Plaintiff Blue Window, LLC's Motion for Summary Adjudication is **GRANTED** as to its immediate right to possession against Defendant Real Auditory Display Augmentation Devices, Inc. ("RAD") pursuant to Code of Civil Procedure section 1161, subdivision (3).

The Court does not rely upon Plaintiff's separate nonpayment theory under section 1161, subdivision (2).

Plaintiff's Request for Judicial Notice is **GRANTED** as to the existence and contents of the court records, but not as to the truth of disputed factual matters contained therein. (Evid. Code, § 452, subd. (d).)

A valid statutory notice is a prerequisite to unlawful detainer, and the statutory notice requirements are strictly construed. (*Eshagian v. Cepeda* (2025) 112 Cal.App.5th 433, 457–459; *City of Alameda v. Sheehan* (2024) 105 Cal.App.5th 68, 75.) Plaintiff's Three-Day Notice to Pay Rent or Quit does not satisfy Code of Civil Procedure section 1161, subdivision (2), because it does not state the telephone number of the person to whom the rent payment is to be made. Accordingly, the Court does not grant summary adjudication on Plaintiff's nonpayment theory.

Plaintiff has, however, established its independent right to possession under section 1161, subdivision (3). Article 14 of the Lease prohibits RAD from subleasing or permitting third-party occupancy without Plaintiff's prior written consent. The Three-Day Notice to Perform Covenant or Quit specifically identified the unauthorized occupancy at 2608 Spring Street and required RAD, within the statutory period, to remove the unauthorized occupant, cease the unapproved occupancy arrangement, provide the required information concerning that arrangement, or surrender possession. The undisputed evidence establishes that Tyrants Volleyball LLC occupied a portion of the premises pursuant to its arrangement with RAD without Plaintiff's written consent and that RAD did not timely cure the violation or surrender possession.

RAD's prior representation that it had physically vacated does not establish a surrender of its tenancy or possessory rights. RAD requested documentation that would surrender possession and authorize Plaintiff to re-enter and relet the premises, but did not execute it. There is no evidence that RAD otherwise renounced its

possessory rights or relinquished its rights with respect to its subtenant before this action was commenced. (See *Briggs v. Electronic Memories & Magnetics Corp.* (1975) 53 Cal.App.3d 900, 904–906.)

The Court's ruling is limited to RAD. Although the proof concerning service of the statutory notices on Tyrants does not establish compliance with Code of Civil Procedure section 1162, subdivision (b)(3), that does not preclude relief against RAD where RAD remained in possession through its subtenant. (*Markham v. Fralick* (1934) 2 Cal.2d 221, 223–225; *Chinese Hospital Foundation Fund v. Patterson* (1969) 1 Cal.App.3d 627, 632.) The Court therefore does not adjudicate the sufficiency of statutory notice or service as to Tyrants.

Accordingly, Plaintiff is entitled to immediate possession of the premises as against RAD. Plaintiff may submit a possession-only judgment and writ of possession consistent with this ruling. Plaintiff's claims for unpaid rent, holdover damages, and other monetary relief are not adjudicated and remain pending for subsequent determination. (*Northrop Corp. v. Chaparral Energy, Inc.* (1985) 168 Cal.App.3d 725, 729–730.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order and possession-only judgment consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

Posted: 3:00 P.M.

